

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- x **SUMMONS**
SAMBA SANAHU,

Plaintiff, Index No.:

-against-

The basis of venue is:
Location of the incidentTHE CITY OF NEW YORK, POLICE OFFICER
COURTNEY HAMLIN, Shield # 22340, POLICE
OFFICER JOHN DOE # 1 (name and number of whom is
unknown at present), and other unidentified members of
the New York City Police Department,Plaintiff designates New York
County as the place of trial.

Defendants.

----- X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 6, 2012

Yours, etc.



DAVID M. HAZAN, ESQ.
Jacobs & Hazan, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690To: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER COURTNEY HAMLIN, Shield # 22340

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
SAMBA SANAHU,

Plaintiff,

INDEX NO:

-against-

THE CITY OF NEW YORK, POLICE OFFICER
COURTNEY HAMLIN, Shield # 22340, POLICE
OFFICERS JOHN DOE # 1 (name and number of whom is
unknown at present), and other unidentified members of
the New York City Police Department,

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, **SAMBA SANAHU**, by his attorneys, Jacobs & Hazan, LLP, as and for
his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C.
Section 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth
Amendments to the United States Constitution and the common law and the laws of the
State of New York. On or about March 14, 2012, at approximately 4:00 PM, plaintiff was
unlawfully arrested, seized and detained by defendants while lawfully in the vicinity of
Broadway and Duane Street, County of New York, State of New York. The defendant
police officers unlawfully arrested plaintiff in the vicinity of 315 Broadway, New York,
New York. Plaintiff was deprived of his constitutional and common law rights when the
individual defendants unlawfully confined plaintiff and caused the unjustifiable arrest and
seizure of plaintiff.

PARTIES

2. Plaintiff Samba Sanaho is a resident of Bronx County, and City and
State of New York.

3. Police Officer Courtney Hamlin, Shield No. 22340, is and was at all
times relevant herein an officer, employee, and agent of the New York City Police
Department.

4. On the date of the incident, Police Officer Hamlin, Shield No. 22340,
was assigned to the Patrol Boro Manhattan South Task Force.

5. Police Officer Hamlin, Shield No. 22340, is being sued in his individual capacity and official capacity.

6. Police Officer John Doe # 1, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. On the date of the incident, Police Officer John Doe # 1 was assigned to the Patrol Boro Manhattan South Task Force.

8. Police Officer John Doe #1, is being sued in his individual capacity and official capacity.

9. At all times relevant herein, the individually named police officer defendants were acting under color of the state law in the court and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

13. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth and Fourteenth Amendments to the United States Constitution, and the common law of the State of New York.

STATEMENT OF FACTS

14. Plaintiff, Samba Sanaho, is an African-American male, who resides in Bronx County, State of New York.

15. On March 14, 2012, at approximately 2:30 PM, Mr. Sanaho was lawfully working at a restaurant located in or about East 23rd Street and Fifth Avenue, County of New York, State of New York when he received a phone call from his friend.

16. Plaintiff's friend owned a store located in the vicinity of 315 Broadway, New York, New York.

17. Plaintiff's friend advised plaintiff that New York City Police Officers were at his store and that he was being arrested by the officers for allegedly selling counterfeit merchandise.

18. Plaintiff's friend asked plaintiff if plaintiff would be kind enough to come to the store and lock the store for him, as plaintiff's friend was being arrested and could not lock up the store.

19. The NYPD officers who were arresting plaintiff's friend were informed by plaintiff's friend that he was having someone come to the store to lock it.

20. Plaintiff explained the situation to his supervisor at the restaurant and obtained permission from the supervisor to leave his job for an hour to close his friend's store.

21. Plaintiff left work and traveled to his friend's store.

22. Plaintiff arrived at his friend's store at approximately 3:30 PM on March 14, 2012.

23. Upon arriving at his friend's store, plaintiff immediately began securing the merchandise in the store and began lawfully closing the store.

24. As defendant was closing his friend's store, the individually named defendant police officers approached plaintiff and proceeded to handcuff him without probable cause or legal justification.

25. Plaintiff advised the defendant police officers that he was not the owner of the store, produced pay stubs from the restaurant where he was employed, and explained that the owner of the store was just arrested, and he was simply closing the store as a favor to the owner.

26. At no time did the defendant police officers have probable cause or any objective reason to believe plaintiff committed a crime.

27. The individually named defendant police officers unlawfully arrested the plaintiff without any legal justification or probable cause.

28. Thereafter, plaintiff was transported by defendants to the 1st precinct, where was placed in a holding cell with 4 to 5 other individuals.

29. Eventually plaintiff was transported to New York County Central Booking where he was unlawfully detained overnight in a holding cell with 30 other individuals, in unsanitary, inhumane, and filthy conditions.

30. On March 15, 2012 at approximately 11:00 a.m., plaintiff was arraigned in New York County Criminal Court and was released on his own recognizance.

31. Thereafter, all criminal charges against plaintiff were dismissed and sealed on or about October 25, 2012.

32. The individually named police officer defendant that observed the violation of plaintiff's Constitutional rights and rights under New York State Law while he was being arrested did nothing to prevent the other defendant from pursuing the unjustifiable false arrest of plaintiff.

33. The false arrest and false imprisonment of plaintiff by the individually named police officer defendants caused plaintiff to sustain permanent psychological and emotional trauma.

34. There is a policy, practice or custom within the New York City Police Department of setting quotas and performance goals for its police officers and enormous pressure is placed on the officers to meet those quotas and/or goals. Plaintiff was falsely arrested on March 14, 2012 as a result of the pressure placed on the defendant officers by the NYPD to meet these goals. See NYPD Operations Order number 52.

35. As a result of defendant City of New York's deliberate indifference about the fact that New York City Police Officers routinely arrest individuals without legal basis or probable cause due to the measuring of enforcement activity, there is a pattern, policy, custom or practice of New York City Police Officers arresting individuals without legal basis or probable cause. Plaintiff was falsely arrested as a result of the above described policy and/or practice.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stop, questioned, frisked, seized, unlawfully search, falsely arrested and imprisoned, plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, damaged plaintiff's motor vehicle in violation of the Fourth Amendment.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

44. Defendants lacked probable cause to search plaintiff.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Failure to Intervene

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

51. The individually named police officer defendants failed to intervene to prevent the unlawful conduct described herein.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

53. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth in length herein.

55. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

56. The aforementioned customs, policies, usages, practices, procedures, and rules of defendant City of New York and the New York City Police Department included, but not limited to, arresting individuals without legal basis or probable cause, as well as inadequate screening, hiring, retained, training and supervising its employees with respect to this issue.

57. The aforementioned customs, policies, usages, practices, procedures, and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of the defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual named defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

58. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

59. The foregoing customs, policies, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

60. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested.

61. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for relief as follows:

That the jury find and the Court adjudge and decree that plaintiff Samba Sanaho shall recover compensatory damages in the sum of \$2,000,000 against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$1,000,000 against the individual defendants, jointly and severally.

a. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff has such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
December 6, 2012

By: _____

STUART E. JACOBS, ESQ.
DAVID M. HAZAN, ESQ.
JACOBS & HAZAN, LLP
11 Park Place, 10th Floor
New York, NY 10007

TO:
CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

POLICE OFFICER COURTNEY HAMLIN, Shield # 22340

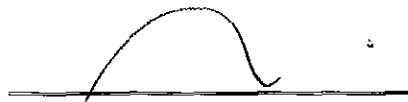
ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York

December 6, 2012

A handwritten signature in black ink, consisting of a series of loops and a final downward stroke, positioned above a horizontal line.

STUART E. JACOBS, ESQ.